

(d) .9 hours auditing billing records in preparation for the motion.

Total hours stricken = 10.7 hours.

The Court awards an additional 2 hours for preparation of reply briefing.

Net reduction in hours = 8.7 hours.

The Court finds a reasonable hourly billing rate for Attorney Wood at \$450 per hour.

Attorney Wood's claimed hours	=	41.7
less hours stricken	=	-8.7

33 hours at \$450 = \$14,850

2. Attorney Anvar:	.3 hours x \$450 = \$135
3. Attorney Walker:	2.7 hours x \$300 = \$810
4. Attorney Schwartz:	1.3 hours x \$400 = \$520
5. Attorney Figura:	.8 hours x 350 = \$280
6. Paralegal:	19.1 hours x \$100 = \$1,910

TOTAL (2) – (6) = \$3655

TOTAL ATTORNEY FEES: \$18,505

The motion is timely. Judgment or dismissal has not been entered in this action and no notice of entry of judgment or dismissal has been served, either by the clerk or by a party. Notice of **conditional** settlement was filed on July 10, 2025, which specified that Plaintiff had to file a request for dismissal by January 10, 2026. No dismissal was filed and no party showed good cause why the case should not be dismissed.

Consequently, the clock to file a motion for attorneys' fees began to run on January 10, 2026. (Cal. Rules of Court, rule 3.1385(c)(2); *Hatlevig v. Gen. Motors LLC* (2026) 118 Cal.App.5th 644, 649-650.) The motion was filed on May 14, 2026, well before 180 days from the date of the dismissal.

No multiplier is awarded. The Court finds nothing novel, difficult, or out of the ordinary about the present case. Similarly, the Court does not find exceptional skill or exceptional results that would warrant a multiplier.

BROOK TERRELL vs. HEATHER DUKE; ET AL.
Case No. CU24-05460

JAMESON Defendants' Demurrer and Motion to Strike First Amended Complaint

TENTATIVE RULING

Defendants JOHN M. JAMESON CONSTRUCTION, INC. and JOHN M. JAMESON (“JAMESON Defendants”) demur to and move to strike portions of Plaintiff BROOKE TERRELL’s first amended complaint (“1AC”) alleging causes of action against them for negligent misrepresentation, fraud, and negligence.

Judicial Notice. Matters subject to judicial notice may support a demurrer under Code of Civil Procedure section 430.30, subdivision (a). The court declines to take judicial notice of JAMESON Defendants’ proffered declaration of counsel as there is no basis for taking judicial notice of a declaration of counsel.

Legal Standard on Demurrer. “The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Legal Standard for Motion to Strike. Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, upon a motion or in its discretion. Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc., § 431.10.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;” therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc., § 437, subd. (a).)

Analysis of Demurrer. Plaintiff’s 1AC is not uncertain or unintelligible. Plaintiff’s causes of action alleged against JAMESON Defendants – those for negligent misrepresentation, negligent misrepresentation, and negligence – contain clear allegations of fact stating JAMESON Defendants’ liability beyond her use of Does: she alleges that she engaged JAMESON Defendants to provide her a quotation of repair costs, that JAMESON Defendants falsely represented their qualifications to provide such a quotation, and that they falsely and/or negligently provided her an unrealistically low quotation. (1AC at ¶¶ 33-35, 49-53, 72-73, 75.) Her reliance and their intent to induce reliance can be inferred from the simple fact that they offered a quotation in the context of being retained to inform Plaintiff of what the costs to repair the property would be so that she could confidently proceed with a real estate purchase. (*Id.* at ¶¶ 22, 36.)

Analysis of Motion to Strike. Plaintiff's prayer properly requests estimated damages from harms allegedly caused by JAMESON Defendants' acts or omissions, notably those flowing from her allegedly being deceived into continuing with the real estate purchase and having to engage in repairs more costly than estimated. That portion of the prayer is not appropriately struck from the pleading. However, Plaintiff concedes that she alleges no basis for the recovery of attorneys' fees; her prayer for attorneys' fees is appropriately struck from the pleading.

Conclusion. JAMESON Defendants' demurrer is overruled. JAMESON Defendants' motion to strike is granted without leave to amend as follows: the 1AC's prayer for attorneys' fees is ordered struck. JAMESON Defendants' motion to strike is otherwise denied.

ANTHONY SMITH vs. HARSHAD B. WADHAR, MD
Case No. CU24-07285

Plaintiff's Motion to Compel Further Responses to Requests for Production, Set Three

TENTATIVE RULING

Plaintiff ANTHONY SMITH's motion to compel Defendant HARSHAD B. WADHAR, M.D.'s further responses to Plaintiff's requests for production, set three, is denied. Defendant served his responses to Plaintiff's requests for production by mail on August 20, 2025, giving Plaintiff fifty days to move to compel further responses. (Code Civ. Proc., §§ 1013, 2031.310, subd. (c).) This set Plaintiff's motion deadline at October 9, 2025. Plaintiff did not file his motion – even measured from the time that he submitted the motion to prison authorities per the “prison mailbox rule” – until October 21, 2025.

MARSHALL TUBBS vs. COUNTY OF SOLANO GENERAL SERVICES; ET AL.
Case No. CU25-09311

Demurrer by COUNTY OF SOLANO GENERAL SERVICES DEPARTMENT to Complaint

TENTATIVE RULING

In general, as a prerequisite to the filing of FEHA-based causes of action, the plaintiff must first file a charge with the DFEH (California Dept. of Fair Employment and Housing) or in more recent times the California Civil Rights Department (CRD), and then upon issuance of a right-to-sue letter, file within the applicable time a civil complaint alleging those FEHA-based causes of action. Government Code §12960; Kim v. Konad USA Distribution, Inc. (2014) 226 Cal.App.4th 1336, 1345 [“Before filing a civil action alleging FEHA violations, an employee must exhaust his or her administrative remedies with DFEH . . . Exhaustion includes the timely filing of